TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Phil Blaisdell – Chair ***Jim Ostrowski*** – Vice-Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Dick Hassberger – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
Deb Sherrod – Recording Secretary

Public Hearings:

Chair Blaisdell opened the hearings at 7:00 pm, and explained the procedure to be followed. The commission will address both issues in Old Business.

1. Stuart Cline "Old Bank Building" Special Use Permit at 440 Lake George St.:

McCaslin began by asking the percentage of the business between rental and retail. Mr. Cline answered to her satisfaction that it will be about 50-50 between the two. Tobin asked about the disposal of the water from power washing watercraft. He replied that he has several options to prevent the water from going directly into the lake. A general discussion followed concerning invasive species and preventing their spread in lakes.

Mr. Cline will limit the use of boats to the lake in the rental contract and will be able to use GPS to monitor the location of the boat.

Chair Blaisdell closed that public hearing.

2. New ordinance for Hazardous Material Spill Cost Recovery:

Chair Blaisdell then opened the next public hearing to consider the new ordinance for hazardous material spill. He explained the reason for this ordinance, using the

example of a hazardous spill by the railroad passing through the township, this ordinance would allow the township to recover the cost of cleaning up such a spill. A question arose about old spills from years ago and would this ordinance impact them. ZA Hassberger clarified that this ordinance only affects spills in the future and has nothing to do with past contamination incidents which have already been resolved.

Chair Blaisdell closed the public hearing.

Regular Meeting – Called to order at 7:23 pm by Chair Blaisdell.

Roll Call:
Present – Blaisdell, McCaslin, Tobin, Hassberger, Sherrod
Absent – Ostrowski, excused, Szczepanski, excused, Trim
Public – 4 in person; 1 via Zoom

Approval of Minutes:
Approval of the regular meeting minutes of December 12, 2023. Tobin made a motion to approve the minutes as presented; McCaslin seconded. Motion passed.

Approval of Agenda: Accepted as presented.

Election of Officers: McCaslin made the motion to nominate and reelect all current officers. Tobin seconded. Motion passed with all in favor.

Zoning Administrator's Report: See Attachment #1
No questions were asked.

Building Inspector's Report: See Attachment #3
No questions or comments.

Ordinance Enforcement Report: See Attachment #2
McCaslin commented on the complaints and ongoing situation at 108 North St (Silver Lake) and that something needs to be done instead of letting it go on. She feels that it has gone too long.

Public Comment: None

Old Business:
1. Master Plan Progress: Public Hearing will be held to review the Master Plan at the March 12 meeting.

2. Stuart Cline SUP: McCaslin had several comments concerning the change in wording of the application. She stated that if his business is going to be mostly retail, he does not need the SUP. Her other concern is about storage and how much will be stored.

Mr. Cline explained his purpose of storage as being temporary storage between rentals. There will be no customer storage. He will use a different site if storage needs grow past the capacity of this property.

McCaslin asked about the use of the existing sign, and Mr. Cline confirmed his intention to do so with no changes in size.

Chair Blaisdell explained that Mr. Cline can come back and apply for a SUP if his storage becomes too large for this current property.

The decision was made that no Special Use Permit is necessary after all.

3. New ordinance for Hazardous Materials Spill Cost Recovery:
McCaslin made the motion to recommend to the township board the Hazardous Materials Spill Cost Recovery Ordinance for approval. Tobin seconded. Motion passed with all in favor.

New Business: None

Announcements: Next Regular Meeting will be Tuesday, March 12, 2024, at 7:00 pm.

Motion by McCaslin to adjourn the meeting; seconded by Tobin. Motion passed with all in favor. Meeting adjourned at 7:52 p.m.

Respectfully Submitted,

Deb Sherrod, Recording Secretary

Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
Zoning Department phone: [313] 530-2606 website: www.lincolntwp.com
e-mail: dickhassbergerl@aol.com

Zoning Administrator: ***Dick Hassberger***

Monthly Zoning Permit Report – January, 2024

Received & Approved
None

Applications
None

RV & Temp Storage on Vacant Lot – Received & Approved
None

Miscellaneous
010-275-001-00 440 Lake George St. New Business 23-11012
Referred Zoning Request and Special Use Application to Planning Commission – Approval process is Ongoing.
Public Hearing Scheduled for 02-13-24

Violations Pending

010-400-001-00	Maple St.	Zoning Violation – Fence and Outdoor Furnace
010-324-003-00	Lake Drive	No Zoning Permit-Deck -Work Halted-Ongoing
010-100-013-00	Arbor Dr	No Zoning Permit-Deck- Construction Halted

Violation-Open & Resolved

010-008-303-09	W. Arthur	New Const w/o permit. No response
010-118-025-00	W. Jefferson	Non-conforming fence w/o Permit, Sent Ltr, file open.
010-275-006-03	W. Arthur	Watercraft on Res Lot in violation of 20.26, In contact with PO
010-014-300-21	S. Finley Lake Rd	Prohibited Use of Semi-Trlr for Accessory Bldg, Working w/PO
010-746-111-00	Pine Run	RV Stored on Res Lot in Violation of 20.26, PO sending info
010-300-020-00	Forest Blvd	RV Stored on Res Lot in Violation of 20.26, Gave Ext for Compl.
010-680-261-00	Oak Run	Non-conforming fence/No Permit, No attempt to correct, Ongoing

Monthly Zoning Permit Report - December 2023

Received & Approved

010-747-367-01	4681 Teaberry Ln	Addition-Carport	23-12005
010-700-488-00	5376 Fawn Terrace, W	Acc. Building	23-12008

Applications

None

RV & Temp Storage on Vacant Lot – Received & Approved

None

Miscellaneous

010-275-001-00	440 Lake George St.	New Business	23-11012

Referred Zoning Request and Special Use Application to Planning Commission – Approval process is Ongoing. Public Hearing Scheduled for 01-09-24.

Violations Pending

010-400-001-00	Maple St.	Zoning Violation – Fence and Outdoor Furnace
010-324-003-00	Lake Drive	No Zoning Permit-Deck -Work Halted-Ongoing
010-100-013-00	Arbor Dr	No Zoning Permit-Deck- Construction Halted

Violation-Open & Resolved

010-008-303-09	W. Arthur	New Const w/o permit. Sent Ltr, open file.
010-118-025-00	W. Jefferson	Non-conforming fence w/o Permit, Sent Ltr, file open.
010-275-006-03	W. Arthur	Watercraft on Res Lot in violation of 20.26, IN RESOLUTION
010-014-300-21	S. Finley Lake Rd	Prohibited Use of Semi-Trailer for Accessory Bldg, IN RESOL.
010-746-111-00	Pine Run	RV Stored on Res Lot in Violation of 20.26, Working with PO
010-300-020-00	Forest Blvd	RV Stored on Res Lot in Violation of 20.26, Gave Ext for Compl.
010-680-261-00	Oak Run	Non-conforming fence/No Permit, Resolution Pend
010-780-058-00	Jackson Rd	RV Stored on Res Lot in Violation of 20.26, RESOLVED.
010-660-086-00	Mockingbird Cr	RV Stored on Res Lot in Violation of 20.26, RESOLVED.
010-740-833-00	Hemlock Ln	RV on Vacant Lot off season, RESOLVED.
010-720-693-00	Elm Run	RV on Vacant Lot off season RESOLVED.
010-636-001-00	Jackson Ave	RV Stored on Res Lot in Violation of 20.26 RESOLVED

Attachment #2

Township of Lincoln

(*Clare County)* P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 ext. 1 website: www.lincolntwp.com e-mail: Ordinance103@gmail.com

January 2024 Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 160 East Davis scrap metal & debris in font and behind garage spilling beyond property line. 12-9-23 drove by took pictures, sent letter. Drove by 1-22-24 debris cleaned up.
Resolved.

Complaint 108 North St much debris, owners moved abandoned property. The grantor of property on our records never responded to letter sent 8-22-23. Now for sale and talked to realtor 11-28-23, said she will give contact information on current grantor but must first get their permission to share that information. Obtained number of grantor called and left message 12-21-23, will follow up with another call after holidays. 1-31-24 Spoke with debt collector from foreclosure on property. He is seeking proposals for removal of debris but may have to wait as ground is too soft. There is also a party interested in buying and is waiting for an offer in writing. Said he will keep in touch, will check in 2 weeks.
On going.

Complaint 390 South St building materials and trash around out of house. Drove by took pictures and sent letter 11-30-23. Talked to owner 12-18-23, asked for more time will check back in January. 1-29-24 Drove by trash was cleaned up.
Resolved.

December 2023 Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 160 East Davis scrap metal & debris in font and behind garage spilling beyond property line. 12-9-23 drove by took pictures, sent letter.
On going.

Complaint 2169 S Jackson Ave metal debris and trash. 9-28-23 clean up started. Owner looking for help with clean up. 11-18-23 called owner and described the one area left to remove trash and was told they will get on it. They are thinking of selling and do not want any violations when it goes up for sale. Property cleaned up 12-15-23.
Resolved

Complaint 108 North St much debris, owners moved abandoned property. The grantor of property on our records never responded to letter sent 8-22-23. Now for sale and talked to realtor 11-28-23, said she will give contact information on current grantor but must first get their permission to share that information. Obtained number of grantor called and left message 12-21-23, will follow up with another call after holidays.
On going

Complaint 390 South St building materials and trash around out of house. Drove by took pictures and sent letter 11-30-23. Talked to owner 12-18-23, asked for more time will check back in January.
On going.

Complaint 931 Judy Trail property never cleaned up after fire. 12-12-23 drove by took pictures sent letter. Owner called 12-20-23 will hire some one to remove scrap metal but is out of state for winter and will see clean up complete once returned in April.
On going.

Complaint 162 Windover Dr dog roaming neighborhood and debris in yard. 12-6-23 drove by took pictures and sent letter. 12-19-23 dog no longer leaving yard and debris removed.
Resolved.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for January, 2024

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB23-00633	010-025-200-03	90 W. Hatton	New Structure - House
PB23-00644	010-002-200-05	190 Old State	Metal Siding & Roof – Pole Barn
PB23-00657	010-700-489-00	5376 W. Fawn Terrace	Prefab Shed
PB24-00007	010-800-022-00	318 Oak Tree St.	Demo
PB24-00011	010-746-309-00	2641 Spruce Hill Dr.	Pole Barn
PE23-00601	010-482-001-00	698 E. Forest	Service Upgrade
PE23-00611	010-032-300-03	5897 Bringold	Service Upgrade
PE24-00015	010-680-216-00	5519 Maple Dr.	Service Upgrade
PE24-00018	010-740-903-00	2191 Hemlock Lane	Service Upgrade
PE24-00019	010-032-200-05	4405 Browns Rd.	Service Upgrade & Generator
PE24-00028	010-025-200-03	90 W. Hatton	Service Upgrade, incl. Fixtures, Circuits
PP24-0005	010-025-200-03	90 W. Hatton	Plumbing – Addition
PP24-0006	010-482-001-00	698 E Forest	Plumbing – Addition
PM23-0332	010-010-100-10	1460 Noonans Trl.	Furnace Change-Out

PM24-0007	010-360-017-00	300 Parkway	New Heating System
PM24-0020	010-025-200-03	90 W. Hatton	Kitchen Fan & Piping

Permits Issued for December, 2023

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB23-00624	010-010-100-15	2875 W. Monroe	Final Inspection- Amish Shed
PB23-00637	010-298-009-00	2787 W. Lake George Dr.	New Structure – Pole Barn
PB23-00644	010-002-200-05	190 S. Old State	Addition
PE23-00579	010-746-287-00	4522 Red Fox Run	Install Service – Pedestal
PM23-0312	010-030-300-15	5656 W. Browns Rd.	New Modular – Furnace & AC
PM23-0313	010-747-364-00	4761 Teaberry	Wood stove

On-Site Water Well & Sewage Disposal System Permits

December, 2023 - Summary

(Address)	(Parcel Number)	(Type)	(Permit Number)	(Final Insp.)
1519 Arbor	010-800-066-01	Septic	SWEH-CX5KBZ	Yes